GENERAL LIABILITY WAIVER & EQUIPMENT USE AGREEMENT

(Golf Cart, BBQ Grill, Kitchen Appliances & All OnSite Equipment)

In exchange for the privilege to occupy and use the Luxe Properties PR LLC rental at Bahia Beach Resort community, including the golf cart assigned to my rental and all equipment, appliances, and amenities provided within or around the property, I hereby accept responsibility for my own negligence and the negligence of any person who uses such equipment.

I hereby agree to operate the golf cart, BBQ grill, kitchen appliances, and any other equipment or amenities in a safe manner, and adhere to all rules set forth by Bahia Beach Resort Community and Luxe Properties PR LLC. I further agree to ensure that anyone using any such equipment with my consent does the same.

I acknowledge that I am liable for all medical and legal claims that may arise from the use of the golf cart, BBQ grill, kitchen appliances, or any other equipment or amenities provided with the rental. **I voluntarily agree to accept the risks of associated with their use, including but not limited to fire, burns, electrical hazards, mechanical failure, bodily injury, property damage, and loss of life.**

On behalf of myself, my personal representatives and my heirs, I hereby voluntarily release the Owner and Property Manager of the Unit at Bahia Beach Resort Community, and its directors, officers, employees, and agents from any and all claims, actions, causes of actions, suits, judgments and demands for bodily injury, property damage, loss of life and/or loss of services, in law or equity, that may in any way or manner arise out of use of the golf cart, BBQ grill, kitchen appliances, or any other equipment or amenities.

GOLF CART TERMS

☐ I am at least 18 years of age and attached hereto is a copy of my valid driver's license. I assume all responsibility for anyone operating this golf cart at the Development.

INITIAL *

☐ I acknowledge that anyone I permit to operate the golf cart shall be at least 16 years of age and be in possession of a valid driver's license.

INITIAL *

☐ I acknowledge that there is a charge of $100 for lost car keys.

INITIAL *

☐ I acknowledge and agree that upon arrival to the property I shall inspect the golf cart(s) and sign the Golf Cart Damage Inspection Checklist. Additionally, I agree that if I don't complete and execute such document by the day of check in at 11:59 P.M. it shall be understood that I waive such inspection right and accept the golf cart(s) as described in such document by Luxe Properties PR LLC. I accept I'm responsible to pay for any other damages caused during my rental period

INITIAL *

☐ I acknowledge that it is strictly forbidden for an individual without a valid driver's license to operate the golf cart. I am responsible for the possession/control of vehicle keys when not in use. Golf carts are a motorized vehicle and driving or riding in these vehicles can lead to serious injury, property damage and even death. The use of these vehicles is for transportation and use should conform with all rules & regulations of the Bahia Beach Resort Community. No excessive speeding, joy riding, golf course or golf course path riding, beach, sand or off-road riding, disregard of traffic signs, or any type of unreasonable activity with the golf cart will be tolerated by the development. I will limit the number of golf cart occupants to the number of occupants recommended by the golf cart's manufacturer. In no way should the use of this vehicle be seen as an endorsement by the unit owner, property manager or Bahia Beach of a form of recreation or fun.

INITIAL *

☐ **I ACKNOWLEDGE THAT THE ASSOCIATION DOES NOT GIVE WARNINGS WITH REGARD TO VIOLATIONS OF APPLICABLE RULES. I ACKNOWLEDGE AND AGREE THAT IN THE EVENT MY GOLF CART IS USED IN VIOLATION OF THE RULES, THE POPERTY MANAGER MAY SEEK REIMBURSEMENTS OF ANY FINES IMPOSED BY THE DEVELOPMENT AND/OR LEVY FINES AGAINST ME**

INITIAL *

BBQ GRILL, KITCHEN APPLIANCES & EQUIPMENT TERMS

☐ I acknowledge that the BBQ grill, kitchen appliances, and all other equipment provided with the rental must be used responsibly and that proper, safe, and cautious use of all equipment is solely my responsibility.

INITIAL *

☐ I acknowledge that improper use of the BBQ grill-including leaving it unattended, failing to clean grease traps, using unauthorized fuels, or placing flammable items nearby-can result in fire, injury, or property damage, for which I accept full responsibility. I understand and agree that the use of the BBQ grill is entirely at my own risk, and that the decision to use it rests solely with me. I further acknowledge that Luxe Properties PR LLC and the Unit Owner cannot supervise or control how the grill is used during my stay, and therefore bear no responsibility for any incident, malfunction, or accident that may occur once I have taken possession of the property.

INITIAL *

☐ I agree to inspect the BBQ grill and any major appliances upon arrival and report any visible damage or malfunction immediately. Failure to do so constitutes acceptance of their condition. I understand that even if the grill or appliances are inspected prior to my arrival, conditions may change due to my use or the use of others in my party. I accept full responsibility for ensuring that the grill and appliances are turned off, closed properly, and used safely at all times.

INITIAL *

☐ I acknowledge that I am responsible for any damage caused to the BBQ grill, kitchen appliances, or other equipment during my rental period, whether due to misuse, negligence, or failure to follow safety guidelines. I further agree that Luxe Properties PR LLC and the Unit Owner shall not be liable for any fire, smoke, heat-related, or mechanical incident arising from my use of the grill or appliances, regardless of cause, including but not limited to user error, oversight, or failure to properly shut off or secure equipment.

INITIAL *

☐ I acknowledge that I am responsible for any fire, smoke, or heat-related damage resulting from the use of the BBQ grill or kitchen appliances, including damage to the property, landscaping, furnishings, or neighboring structures. I understand and agree that Luxe Properties PR LLC and the Unit Owner are not responsible for any such damage or loss, and I accept full financial responsibility for all repairs, replacements, or associated costs.

INITIAL *

☐ I agree not to use any equipment in a manner inconsistent with posted rules or reasonable safety practices, and I acknowledge that safe and proper operation is solely my responsibility.

INITIAL *

GENERAL RESPONSIBILITY & ACCEPTANCE

I understand that all equipment provided with the rental-whether indoors or outdoors-is for functional use only and not intended as recreational or entertainment devices. I accept full responsibility for supervising all individuals who use any equipment with my permission.

I acknowledge that failure to comply with rules may result in fines, charges for damages, or additional fees imposed by the Property Manager or the Development.

I acknowledge and agree that Luxe Properties PR LLC and the Unit Owner cannot supervise, monitor, or control the use of any equipment, appliances, or amenities during my stay. Once I take possession of the property, all risks associated with the use of the BBQ grill, kitchen appliances, and any other equipment rest entirely with me. I voluntarily assume full responsibility and liability for any accident, injury, fire, property damage, or loss arising from such use, regardless of cause or circumstance.

SIGNATURE & GUEST INFORMATION

Signature: *

Signature Date *

Guest Name *

License *

Issuing State *

Address *